

Vinod Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 August 2014 · Criminal Misc. Writ Petition No. 14105 of 2014 · **FIR quash refused; arrest to follow Cr.P.C. ss. 41(1)(b) and 41-A.**

HEADNOTE

On a criminal writ seeking to quash FIRs under Section 135 of the Electricity Act, 2003, the High Court refused quashing because the FIRs disclosed a cognizable offence, directed that any arrest for an offence not entailing more than seven years' imprisonment comply with Sections 41(1)(b) and 41-A Cr.P.C., and observed that if the offence is compoundable the accused may seek the remedy under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Vinod Kumar and another sought quashing of two FIRs dated 30 August 2013 (Case Crime Nos. 424 of 2013 and 427 of 2013) under Section 135 of the Electricity Act, 2003, registered at Police Station Nigohi, District Shahjahanpur. Arrest had not been made. They contended that the alleged offence carried a sentence not exceeding seven years, so police should not arrest them mechanically, and that the offence was compoundable. Counsel for the State and the complainant appeared.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing of s.135 FIR and arrest

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not to be quashed. Where arrest has not been made and the offence will not entail a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C.; if the offence is compoundable, the accused may pursue compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy On a criminal writ seeking to quash FIRs under Section 135 of the Electricity Act, 2003, the High Court refused quashing because the FIRs disclosed a cognizable offence, directed that any arrest for an offence not entailing more than seven years' imprisonment comply with Sections 41(1)(b) and 41-A Cr.P.C. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED SECTION 135 OFFENCE WAS COMPOUNDABLE ON THE PETITIONERS' FACTS

The Court left compounding to the accused if the offence is compoundable under the Supply Code, 2005. ¶ 1

NOT DECIDED — WHETHER ARREST WOULD IN FACT VIOLATE SECTIONS 41(1)(B) AND 41-A CR.P.C.

Arrest had not been made; the plea was treated as apprehension and met with a compliance direction. ¶ 1